

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER 1162993		PAGE OF 1	
2. CONTRACT NO.		3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER		5. SOLICITATION NUMBER 1240LS26Q0034		6. SOLICITATION ISSUE DATE 05/05/2026
7. FOR SOLICITATION INFORMATION CALL:		a. NAME CHRISTINE HANSEN			b. TELEPHONE NUMBER (No collect calls) 385-509-1895		8. OFFER DUE DATE/LOCAL TIME 05/19/2026 1300 MT
9. ISSUED BY USDA-FS CSA INTERMOUNTAIN 7 324 25TH ST OGDEN UT 84401-2310				CODE 40LS 10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☒ SET ASIDE: % FOR: ☒ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A) SIZE STANDARD:			
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)	
15. DELIVER TO SALMON-CHALLIS NATIONAL FOREST 1206 SOUTH CHALLIS STREET SALMON ID 83467				16. ADMINISTERED BY USDA-FS CSA INTERMOUNTAIN 7 324 25TH ST OGDEN UT 84401-2310			
17a. CONTRACTOR/ OFFEROR		CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY			
TELEPHONE NO.							
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0001	Delivery and application of liquid dust abatement materials on up to approximately 42.4 miles of road on the Salmon-Challis National Forest. Salmon River Road, Stanley-Landmark and Boundary-Dagger Roads Delivery: 07/10/2026 Period of Performance: 06/01/2026 to 07/10/2026 Base Item 1 - Magnesium Brine Salmon River Road Continued ... (Use Reverse and/or Attach Additional Sheets as Necessary)						
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Government Use Only)	
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA						☒ ARE ☐ ARE NOT ATTACHED.	
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED.	
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.				☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER) 			
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED	
				CHRISTINE M. HANSEN		5/5/2026	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0002	Base Item 2 - Magnesium Brine Stanley-Landmark & Boundary-Dagger Roads				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT			42a. RECEIVED BY (<i>Print</i>)	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		41c. DATE	42b. RECEIVED AT (<i>Location</i>)	
			42c. DATE REC'D (YY/MM/DD)	42d. TOTAL CONTAINERS

**Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034**

Statement of Requirement

This solicitation is for the delivery and application of liquid dust abatement materials on up to approximately 42.4 miles of road on the Salmon-Challis National Forest. The vendor shall be responsible for delivering and applying the specified products at the locations and rates specified in this solicitation. Other products including oils, polymers or other proprietary formulations have not been evaluated under Section 7 of the Endangered Species Act for use as dust suppressants on the Salmon-Challis National Forest at this time so shall not be considered for this solicitation. The indicated products listed have been approved through consultation with responsible oversight agencies under the Endangered Species Act. Dry forms of the indicated product (i.e. flake or prill) may be offered with the understanding that the vendor shall need to provide additional detail on specific application procedures that may be different from the application of the brine product(s). If offered, dry products will be evaluated on a total cost-of-project basis including any additional costs for road preparation, watering and finishing that would be incurred by the Forest Service. Indicate below the product(s) you are offering and the corresponding price. Vendors may quote either or both product options but must quote at least one product option for each item. Price shall include delivery and application at the indicated rate and application width. Award will be based on best value.

Schedule of Items

(If quoting dry products specify product and pricing below and adjust quantity estimate for equivalent solids by weight)

Base Item 1: Magnesium Brine Salmon River Road

Product Option	Description	Estimated Quantity	Unit	Unit Amount	Total Amount
(A)	Magnesium Chloride Brine Guaranteed 31% MgCl ₂ in brine 0.3 Gal. per Square Yard	405	Ton	\$	\$

Base Item 2: Magnesium Brine Stanley-Landmark & Boundary-Dagger Roads

Product Option	Description	Estimated Quantity	Unit	Unit Amount	Total Amount
(A)	Magnesium Chloride Brine Guaranteed 31% MgCl ₂ in brine 0.5 Gal. per Square Yard (2 applications, not to exceed 0.3gal/SY per application)	339	Ton	\$	\$
Total of Base Item 1 and Base Item 2				\$	

A. General Specifications

1. Scope of Contract

This solicitation is for the purchase, delivery, and spread of dust abatement materials on the designated road segments located on Salmon-Challis National Forest. Acceptable products are: Magnesium Chloride brine (min. 31% salt by wt.). Dry formulations (flake or prill) may be substituted as noted in the project description provided quantities offered yield equivalent salt values as the brine products.

**Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034**

The Forest Service will grade and water the roads prior to application of the product. Application and preparation schedules shall be coordinated to ensure that the dust control products are being applied on newly prepared surfaces. The Forest Service will adjust pre-application work to the extent possible in order to accommodate the application schedule.

Daily application will be limited to the amount of road that can be made ready. Barring unforeseen setbacks and delays, preparation of the roadway should accommodate a minimum application of 100 tons per day with up to 150 tons per day possible.

The Contracting Officer's Representative (COR) will accompany the Contractor to all road locations where the material shall be delivered and spread. The COR will provide on the ground direction or mark the beginning and ending points for application including the points of change in quantity, width or application rates. Any modification to spreading applications shall be approved by the Contracting Officer through the COR.

The Contractor shall coordinate application schedules with road preparation and pre-wetting by the Forest Service, including providing estimates of deliveries/application to ensure that sufficient roadway is prepared in advance of application and prevent the costs associated with having to maintain excessive lengths of roadway in an applicable condition. The COR may suspend or delay application of dust abatement material if weather, traffic, delivery delays or other causes create conditions unsuitable for application until suitable conditions can be restored.

2. Delivery Location (Roads) See Map Attachments 4 and 5.

ITEM	LOCATION
1- SALMON RIVER ROAD	PROJECT BEGINS 16.8 MILES WEST OF NORTH FORK, ID
2 - Stanley-Landmark & Boundary-Dagger Roads	PROJECT BEGINS APPROXIMATELY 22 MILES WEST OF STANLEY, ID AT THE JUNCTION OF STATE HIGHWAY 21 AND FOREST ROAD 579

**Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034**

DELIVERY LOCATIONS/APPLICATION RATES

ROAD #	APPLICATION SEGMENT	PRODUCT	LOCATION	BMP	EMP	LENGTH (mi)	WIDTH (ft)	Application Rate (gal/SY)	TONS MAG
60030	SPRING CREEK TO COVE CREEK	MgCl ₂ (31%)	MP 16.8 to MP 27.5	16.8	27.5	10.7	16	0.3	165
60030	COVE CREEK TO COLSON CREEK	MgCl ₂ (31%)	MP 27.5 to MP 34.0	27.5	34	6.5	16	0.3	101
60030	COLSON CREEK TO CORN CREEK	MgCl ₂ (31%)	MP 34.0 to MP 46.0	34	46	12	12	0.3	139
SUBTOTAL SALMON RIVER ROAD						29.2			405
40579*	JCT HWY 21 TO JCT 40568	MgCl ₂ (31%)	MP 0.0 to MP 9.5	0	9.5	9.5	16	0.5	244
40568*	JCT 40579 TO CAMPTENDER T.H.	MgCl ₂ (31%)	MP 0.0 to MP 3.7	0	3.7	3.7	16	0.5	95
SUBTOTAL STANLEY-LANDMARK & DAGGER-BOUNDARY						13.2			339
TOTAL						42.4			744

* Do not apply product within 50' of the edge of water of select waterbodies as directed/marked by the COR.

3. Period of Performance/Application Requirements

3a- Period of Performance

A Notice to Proceed may be issued any time after June 1, 2026 provided the requirements in 3c have been met.

This project shall be completed no later than July 10, 2026 unless excusable delays prevent meeting this requirement.

3b- Application Requirement

To prevent loss of product from the roadway, the contractor shall not apply product prior to or during significant precipitation occurrences. Determination of allowable weather conditions is the responsibility of the COR.

3c- Application Schedule

All applications shall be scheduled with the COR a minimum of 7 days prior to actual application to facilitate the commencement of pre-application road preparation. **An application schedule shall be submitted and approved by the COR prior to issuance of the Notice to Proceed.**

If the Government is required to recondition the prepared road due to the contractor's failure to maintain scheduled work, the contractor shall be liable for all additional costs incurred by the Government for additional reconditioning.

**Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034**

4. Road Access/Description

Salmon River Road

MP 0.0 Junction with Highway 93- 22 miles north of Salmon.

MP 0.0 – 17.0 2 lane paved with flat (0-3%) favorable gradients. No dust abatement application.

MP 17.0 –27.0 Begin dust abatement application. 2 lane crushed aggregate surface with flat favorable gradients.

MP 27.0 –34.0 1 ½ lane with turnouts. Native surface with flat favorable gradients.

MP 34.0 –46.0 1 lane with turnouts. Native surface with flat favorable gradients.

Landmark –Stanley Rd

MP 0.0 – 3.0 Single lane with turnouts. Aggregate surface, moderate adverse gradients.

MP 3.0 – 9.5 Single lane with turnouts. Aggregate surface, moderate favorable gradients.

Dagger-Boundary Rd

MP 0.0-3.76 Single Lane. Aggregate surface, flat gradients.

5. On Site Storage

Vendor's representative shall meet with the COR for this project to discuss location and setup of any tanks. Possible locations are indicated on the maps but other locations may be approved.

Temporary storage at delivery locations may be used if the following conditions have been met.

1. The Forest Service has approved the site prior to setting up and filling the tank.
2. The tank(s) and transfer equipment are in good physical condition with no visible signs of leakage.
3. Valves shall be lockable and kept locked when unattended or not in use.
4. Secondary containment is provided for flexible tanks (bladders).
5. Trailers may be used as stand alone storage without secondary containment.

6. Existing Facilities

All existing facilities such as, but not limited to, signs, cattleguards, and culverts damaged by the Contractor shall be replaced or repaired by the Contractor at no additional cost to the Government.

7. Public Safety

The Contractor shall exercise due caution and care when operating to prevent undue conflict with public users of the roads. The Forest Service will have in place temporary traffic control for blading and watering of the road that will remain in place for the duration of work including application of the product. The vendor is not expected to provide additional signage but should exercise the use of warning lights or flashers to help identify stationary or slow moving equipment on the roadway.

8. Pollution and Erosion Control

(a) All refuse, including garbage, rubbish, and solid or liquid waste from the Contractor's operations, including camps, parking areas, and equipment maintenance areas shall be stored and collected in a sanitary manner and disposed of in a State-approved sanitary landfill or as approved by the Contracting Officer.

Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034

(b) Equipment shall be fueled away from perennial and intermittent streams, springs or other water sources. Proper procedures shall be used when fueling to prevent overflow, leakage, or spills from fueling equipment.

9. Equipment Breakdown

All repairs to equipment furnished under this contract shall be made by the Contractor. Repairs shall be made promptly and equipment returned to service within 48 hours. In lieu of repairing equipment, the Contractor may furnish similar replacement equipment within the time specified.

10. Government Responsibility

The Government will be responsible for preparing the road surfaces for the materials, including the hauling of any water needed to prepare the road surface. Unless otherwise agreed to prior to application, roads will be prepared for early morning application. The Government will coordinate road preparation with the Contractor to minimize delays associated with inadequately prepared roads. Planned preparation will be based on Contractor's schedule and delivery estimates within the capability of available resources for preparation.

11. Contractor Responsibility

The Contractor shall be responsible for obtaining any necessary licenses and permits, and for complying with any applicable federal, state, and municipal laws, codes, and regulations in connection with the prosecution of the work.

The Contractor shall furnish with each delivery a Certificate of Compliance (see Attachment 2) or a bill of lading if it contains the same information as the Certificate of Compliance, describing product delivered. THE CONTRACTOR MAY BE REQUIRED TO PRESENT CERTIFICATION OF ANY DELIVERY BY THE COR PRIOR TO APPLICATION OF THE PRODUCT.

12. Method of Measurement

The method of measurement is the tonnage of the specified dust abatement materials applied to the road surface and accepted. The contractor will provide certified scale tickets for each load delivered in order to receive payment.

13. Basis of Payment

- (a) Quantities stated in Section I - Services and Prices are estimates and will be used for evaluation of quotes. Delivery of quantities in excess of those estimated will not be required unless agreed to in writing by the Contractor and the Contracting Officer. Minor downward adjustments to quantity may be acceptable if the estimated quantity is surplus to the need or other considerations agreeable to both parties justify the adjustment.
- (b) The COR may direct additional check weighing of loaded and empty vehicles at any time.
- (c) Payment will be made at the contract unit prices, for actual quantities accepted in accordance the Quality Assurance Plan of this contract.

14. Landscape Preservation

(a) The Contractor shall confine operations to within the clearing limits or other areas designated in contract documents, and prevent the depositing of rocks, excavated materials, stumps, or other debris outside of these

Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034

limits. Material which falls outside of these limits shall be retrieved, disposed of, or incorporated in the work as directed by the Contracting Officer.

(b) Operation shall be scheduled and conducted to minimize erosion of soils and to prevent silting and muddying of streams, rivers, irrigation systems, and impoundments (lakes, reservoirs, etc.).

Pollutants such as fuels, lubricants, bitumens, raw sewage, and other harmful materials shall not be discharged into or near rivers, streams, and impoundments or into natural or manmade channels leading thereto.

Contractor shall have a spill kit to respond to spills of harmful materials.

Vehicles/equipment shall be cleaned prior to coming on to the forest. Loads may face rejection if vehicles are excessively dirty/muddy. Contractor shall not use equipment with leaking fluids. Contractor shall repair equipment fluid leaks immediately. Contractor shall keep absorbent material manufactured for containment and cleanup of hazardous material on the job site. Notify the COR/CO of hazardous spills immediately.

Mechanized equipment shall not be operated in live streams without written approval by the Contracting Officer.

15. End Product Description

After performing Dust Abatement operation, the application:

- Shall have a uniform spread of abatement material on the road.
- Shall have product applied in a manner not to deviate from the ordered rate of application by +/-5% for any segment of the project.
- Shall be covered as to the specified width.
- Shall be no over-spray running into ditches or waterways.
- Shall comply with product specifications.
- Shall not have been contaminated by other products hauled in the transportation or distribution equipment.
- Shall have been accomplished within the requirements of Section 3. Period Of Performance/Application Requirements

16. Contractor's Quality Control Plan: Contractor shall provide a Quality Control Plan that outlines, in part, a performance strategy and addresses all major points contained in the Quality Assurance Plan.

17. Quality Assurance Plan: See Attachment 1 for a full understanding of all tasks required and acceptable quality levels.

B. Solicitation Attachments

- Attachment 1- Quality Assurance Surveillance Plan
- Attachment 2- Sample Certificate of Compliance
- Attachment 3- Experience Questionnaire
- Attachment 4- River Road Map
- Attachment 5- SL-DB Dust Abatement Map
- Attachment 6- Wage Determination-Service-Lemhi and Custer Counties
- Attachment 7- Wage Determination-Service-Valley County

**Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034**

Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-4	Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
52.203-17	Contractor Employee Whistleblower Rights (Nov 2023)
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.222-50	Combating Trafficking in Persons (Nov 2025)
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
52.232-39	Unenforceability of Unauthorized Obligations (Jun 2013)
52.232-40	Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3	Protest After Award (Sep 2025)
52.233-4	Applicable Law for Breach of Contract Claim (Sep 2025)
52.240-91	Security Prohibitions and Exclusions (Nov 2025)
52.244-6	Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable if checked:

- ☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
- ☒ 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
- ☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
- ☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
- ☒ 52.222-3 Convict Labor (June 2003)
- ☒ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
- ☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
- ☒ 52.222-37 Employment Reports on Veterans (Nov 2025)
- ☒ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
- ☒ 52.222-41 Service Contract Labor Standards (Aug 2018)
- ☒ 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)

**Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034**

This Statement is for Information Only:
It is not a Wage Determination

Employee Class	Monetary Wage -- Fringe Benefits
Truck Driver GS-6	\$23.21 + Fringe Benefits

- ☒ 52.222-54 Employment Eligibility Verification (Nov 2025)
- ☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
- ☒ 52.222-90 Addressing DEI Discrimination by Federal Contractors (Apr 2026)
- ☒ 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (Nov 2025)
- ☒ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)

Other Applicable Clauses

AGAR Clauses

452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec 2025)

(a) By entering into this contract, the Contractor certifies that:

- (1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.
- (2) Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.

(b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034

(e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) The Contractor must include the provisions of this clause in all subcontract solicitations.

(g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default.

(End of Clause)

AGAR 452.203-72 Unenforceable Supplier Terms (APR 2026)

(a) Definitions.

Supplier terms mean provisions customarily drafted by vendors of supplies or services and intended to create a binding legal obligation on the end user. The term applies:

1. Regardless of the format or style of the document. For example, supplier terms may appear in standard terms of sale or lease, Terms of Service (TOS), End User License Agreement (EULA), or another similar legal instrument or agreement, and may be presented as part of a proposal or quotation responding to a solicitation for a contract or order or otherwise become effective after the contract date.
2. Regardless of the media or delivery mechanism used. For example, supplier terms may be presented as one or more paper documents or may appear on a computer or other electronic device screen during a purchase, software installation, other product delivery, registration for a service, or another transaction.

(b) Applicability. When any supply or service acquired under this contract is subject to supplier terms, the supplier terms are deemed part of the contract only to the extent they are consistent with this clause. Supplier terms that conflict with any part of this clause, the contract, or Federal law are void and will not be considered incorporated into a contract, even if they are physically present in a contract documentation or systems. In the event of any inconsistency between supplier terms and this contract, this clause and the terms of the Government contract shall govern and supersede any supplier terms in all cases.

(c) Authorization Required. Notwithstanding any other provision, no supplier terms shall be binding on the Government unless the term is expressly authorized on the USDA Supplier Terms Authorization Form signed by the Contracting Officer, and the completed Authorization Form has been incorporated into the contract.

(d) Unenforceable Terms. Any supplier terms that impose obligations or restrictions inconsistent with applicable Federal law are unenforceable against the Government and deemed stricken from the agreement. This includes, but is not limited to, any clause that:

1. Requires the Government to pay future fees, penalties, interest, legal costs, early-termination fees, cancellation fees, minimum purchase commitments, true-up payments, seat-count minimums, usage minimums, continued-use charges, or any other financial obligation not expressly authorized by the contract.

Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034

2. Requires the Government to indemnify the contractor or any other entity.
3. Restricts the Government's ability to obtain similar supplies or services from another source.
4. Imposes any penalty, financial or otherwise, based on the Government's decision not to exercise an option.
5. Subjects the United States Government to the laws of any U.S. state, territory, district, municipality, or foreign nation, except where Federal law expressly permits such application.
6. Requires dispute resolution in a forum or venue other than one prescribed by applicable Federal law.
7. Establishes a period of limitations for bringing an action that differs from that provided by applicable Federal law.
8. Grants the contractor rights to use, mine, access, aggregate, analyze, or otherwise exploit Government data, usage data, or metadata.
9. Deems the Government to have accepted initial or revised terms based on silence, continued performance, or failure to object.
10. Grants the supplier the right to audit Government facilities, systems, records, or use of the product or service, except as expressly authorized by the contract and applicable Federal law.
11. Requires the Government to accept supplier security requirements, network access requirements, monitoring, penetration testing, or other technical or security measures.
12. Permits the supplier to suspend, degrade, or terminate access to products or services based on alleged non-payment, alleged breach, automated security triggers.
13. Limits the Government's right to use, install, access, test, evaluate, or transfer the licensed product or service in any manner consistent with the contract and Federal law.
14. Requires the Government to store, process, maintain, or transmit data in a particular geographic location, or permits the supplier to transfer Government data outside the United States, except as expressly authorized by applicable Federal law.
15. Authorizes the supplier to use the Government's name, seal, trademark, logo, or any reference to the Government as an end user or customer for marketing, publicity, promotional activities, press releases, or similar purposes.
16. Incorporates by reference, or requires the Government to accept, terms or conditions imposed by any third party, subcontractor, or upstream service provider, unless such terms are expressly incorporated into the contract by bilateral modification.
17. Limits, conditions, or negates the contractor's performance obligations, service levels, or remedies through a supplier-provided service level agreement (SLA).
18. Uses Government data, usage data, metadata, prompts, content, or interactions to train, fine-tune, improve, or derive any artificial intelligence, machine learning, or automated decision-making model.
19. Subjects the Government to automated decision-making, automated risk scoring, automated content moderation, or any algorithmic process that may affect access, performance, or rights under the contract.
20. Utilizes artificial intelligence or algorithmic tools that produce decisions, recommendations, or outputs affecting contract performance without providing transparency, explainability, auditability, and bias-mitigation consistent with applicable Federal law and policy.
21. Profiles, tracks, or analyzes Government user behavior, preferences, communications, or interactions for personalization, marketing, or algorithmic optimization purposes.

(e) Non-binding Actions. Neither the Government nor any Government authorized end user is deemed to have consented to any term, condition, or clause by virtue of its inclusion in the supplier agreement or through the use of clickwrap, browsewrap, "I agree" mechanisms, or similar means. Execution of such mechanisms does not bind the Government or its authorized end users to any unenforceable terms.

(f) End user. The supplier agreement shall bind the ordering activity as the end user to the extent it does not conflict with the terms of this clause, but it shall not bind or impose personal liability on any Government employee or any person acting on behalf of the Government in their personal capacity.

Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034

(g) Law and disputes. The supplier agreement is governed by Federal law.

(h) Statutory exception. This clause does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(i) Continued performance. The supplier or licensor shall not unilaterally revoke, terminate, or suspend any rights granted to the Government except as allowed by the contract. If the supplier or licensor believes the ordering activity to be in breach of the supplier agreement, it shall pursue its rights under the Contract Disputes Act or other applicable Federal statute while proceeding diligently with performance, pending final resolution of any dispute in accordance with the Disputes Clause at FAR 52.212-4(d) or FAR 52.233-1, as applicable.

(j) Arbitration. Binding arbitration shall not be used unless specifically authorized by agency guidance.

(k) Equitable or injunctive relief. Equitable or injunctive relief, including the award of attorney fees, costs, or interest, may be awarded against the United States Government only when explicitly provided by statute (e.g., the Prompt Payment Act or the Equal Access to Justice Act).

(l) Revisions to supplier agreements. Any revisions to the supplier agreement must be incorporated into the contract using a bilateral modification. Unilateral revisions are not binding on the Government.

(m) No automatic renewals. If any license or service tied to periodic payment is provided under the supplier agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express written consent from an authorized Government representative.

(n) Indemnification. Any clause of the supplier agreement requiring the supplier or licensor to defend or indemnify the end user is amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.

(o) Taxes or surcharges. Any taxes or surcharges which the supplier or licensor seeks to pass along to the Government as end user will be governed by the terms of the associated Government contract or order and must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed otherwise.

(p) Non-assignment. The supplier agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval, except as expressly permitted by FAR 52.212-4(b) or FAR 52.232-23, as applicable.

(q) Confidential information. If the supplier agreement includes a confidentiality clause, such clause is amended to state that neither the agreement nor the contract price list, as applicable, shall be deemed "confidential information." Issues regarding release of "unit pricing" will be resolved consistent with the Freedom of Information Act. Notwithstanding anything in the supplier agreement to the contrary, the Government may retain any confidential information as required by law, regulation, or its internal document retention procedures for legal, regulatory, or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of the supplier agreement.

(r) Conflict with Federal law. If any other language, provision, or clause of the supplier agreement conflicts or is inconsistent with Federal law or the terms and conditions of this contract, such language, provisions, or clauses will be considered null and void and will not be binding on the United States Government.

**Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034**

(End of Clause)

452.204–70 Modification for Contract Closeout (Apr 2026)

(a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) may issue a unilateral modification for deobligation. The contractor will receive a copy of

the modification but is not required to provide a signature. The Contracting Officer will immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) For commercial contracts not exceeding the simplified acquisition procedure threshold under FAR 12.001(c), if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification. Only the modification requires the contractor's signature, though a Release of Claims may be requested. If the required documents are not returned within 60 days, the Contracting Officer will issue a unilateral modification and proceed with closeout once performance is complete, acceptance is confirmed, and final payment is made.

(c) For all other non-commercial or non-cost-reimbursement contracts, if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification and a Release of Claims, both requiring contractor signature. If these documents are not returned within 120 days, the Contracting Officer will issue a unilateral modification and proceed with closeout upon completion of performance, acceptance, and final payment.

(End of Clause)

Solicitation Information

Award Type

It is anticipated that a Firm-Fixed Price Contract will be awarded as a result of this synopsis/solicitation.

Award will not necessarily be made to the lowest-priced offeror.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Evaluation and Basis for Award

At a minimum, the technical portion of your proposal must clearly provide the following information:

1. Technical Capability: Company & any Subcontractor(s) - Offeror shall provide a written narrative describing Offeror's and any proposed subcontractor(s) technical capability in performing similar type work:

- Describe the dust abatement product(s) you are offering (e.g. chemical analysis, specific gravity, dry or liquid form)
- List of Equipment, including type, tank capacity, application, metering system, make, model, year and condition, to be used for this type of work and the availability to dedicate to any resulting contract, and on-site storage (if any);
- Intended Application procedure (e.g. single or multiple passes, use of shuttle trucks)
- Key Personnel, including name and qualifications;
- Approach to managing and monitoring this project to ensure quality control including application rates and consistency as well as product quality; and

Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034

- Identification of any subcontractor's and their role and responsibilities in the completion of the work.
- Project specific Quality Control Plan

2. Experience:

- Offeror shall provide a written narrative that outlines and identifies previous projects that demonstrate the offeror's experience performing similar types of projects including knowledge and skills in material handling and application, years of experience, number of individual contracts or quantity of combined work.
- Written narrative that outlines and identifies the experience of any identified subcontractors to be used in the completion of this work.

Note: If subcontractors are to be used, each subcontractor's information used for this contract must be included.

3. Past Performance:

Past Performance is a measure of the degree to which offeror, as an entity/organization, have satisfactorily completed contracted work, have satisfied their customers, and complied with Federal, state, and local laws and regulations. Provide a minimum of three (3) past performance references, that reflect recent, relevant experience within the last Five Years, as of the solicitation release date, that demonstrate the Offeror's ability to handle the scope and breadth of the Statement of Work (SOW). If problems were encountered during contract performance, indicate your efforts to resolve them. For those contracts with less than positive performance, you are encouraged to provide a description of the problems and the efforts made to correct and to prevent future occurrences. Example contracts may have been performed for Federal, State, and/or local Governments, as well as private industry.

Offerors are responsible for providing contract descriptions and applicable experience in sufficient detail to permit evaluation of the example contract's relevancy. If the Offeror does not provide up to three past performance references during the last five years, the Offeror shall address this and provide a written narrative detailing the reasons for not providing three references.

Include the following information for each past performance reference:

1. Contract/Task Order number
2. Project Name
3. Total contract price
4. Short description of work performed
5. Names and valid phone number, e-mail address, and mailing address for the Contracting Officer (CO) and Contracting Officer's Representative (COR)/Program Manager (PM)

Offerors are advised that: (1) The Government may utilize any references provided by the Contractor, along with information available from past contracts/orders with the USDA and any information found using sources such as Federal Government sources or the Contractor Performance Assessment Reporting System (CPARS) to determine if the Contractor has acceptable or neutral Past Performance. (2) the Government reserves the right to use any such information received as part of its evaluation of the Offeror's past performance; (3) the Government reserves the right to directly solicit input on the Offeror's past performance from any other sources and the Government may use any other data available to its evaluators, including the personal knowledge of those individuals; and (4) if the Offeror

Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034

omits projects of which the Government evaluation team is aware or becomes aware, customer assessments may be sought from the relevant organization.

The Government reserves the right to limit or expand the number of references it contacts and to contact references other than those provided by the Offeror. If subcontracting is proposed for subject

Contract, past performance references where the Offeror has served as a prime Contractor with Subcontractors would be of interest.

Note: Information shall be provided for the offeror as well as any principal subcontractor(s) that will perform key aspects of the requirement. If the offeror submits Past Performance Information for a subcontractor, the offeror shall also submit the consent of the subcontractor for the Government to disclose the PPIR to the offeror (prime) during negotiations.

Past Performance will be evaluated using the following rating system:

- **Acceptable:** The contractor shows a demonstrated ability to meet contract requirements in prior or current contracts, including quality of work, Coordination of work schedules, Adherence to established schedules and communication of unplanned schedule changes that allow for adjustment of preparation work if needed, accuracy and timeliness including Record keeping and submittal of required documentation. Invoices are correct as are certifications of products and measurement, cost control, business relations, and adherence to contract terms.
- **Neutral:** Offeror does not have a past performance record.
- **Unacceptable:** The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior.

4. Worksite Safety –

Offeror shall provide a description of their safety protocols and how their safety protocols will be applied to this specific project.

5. Timeliness-

Offeror shall demonstrate the ability to perform the task within the allotted time frame, including a timeline to accomplish the work.

6. Price

Offeror's shall complete the Schedule of Items (and any possible SF 30 amendments)

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer.

**Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034**

Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):
<https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

Period for acceptance of offers.

The Offeror agrees to hold the prices in its offer firm for **90 calendar days** from the date specified for receipt of offers.

Questions

Address questions about this solicitation to CO, Chris Hansen at christine.m.hansen@usda.gov and are due no later than May 11, 2026, at 1:00 PM Mountain Time. This will ensure enough time to respond before the solicitation period ends. Please include the solicitation name and number as the subject line of the email.

Offers

Offers are due no later than May 19, 2026 at 1:00 PM Mountain Time. Submit offer by email to Christine.M.Hansen@usda.gov so that it is delivered into this inbox by the due date and time.

Emails shall contain 2 separate attachments (Technical Proposal and Price Proposal) in Microsoft Word, Excel, or Adobe PDF format. Be aware that large attachments may increase the time required to deliver an email. It is the offerors responsibility to confirm receipt of the offer from Contracting Officer, Chris Hansen

- 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
- 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
- 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
- 52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

The following provision is applicable:

- ☒ 52.204-7 System for Award Management—Registration (Nov 2025)
- ☐ Alternate I (Nov 2025) to 52.204-7

AGAR Provisions

- 452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification (Dec 2025)

(a) By submission of its offer, the offeror certifies that:

- (3) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
- (4) Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order

Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034

14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default.
(End of Provision)

NOTICE FOR FILING AGENCY PROTESTS
United States Department of Agriculture (USDA) Ombudsman Program

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.
3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be

Magnesium Chloride Application
Salmon-Challis National Forest
1240LS26Q0034

suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.

3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.